

Syllabus

matter been left for Pennsylvania to decide. There is no support for the Government's proposed distinction between different federalism arguments for purposes of prudential standing rules. The principles of limited national powers and state sovereignty are intertwined. Impermissible interference with state sovereignty is not within the National Government's enumerated powers, and action exceeding the National Government's enumerated powers undermines the States' sovereign interests. Individuals seeking to challenge such measures are subject to Article III and prudential standing rules applicable to all litigants and claims, but here, where the litigant is a party to an otherwise justiciable case or controversy, she is not forbidden to object that her injury results from disregard of the federal structure of the Government. Pp. 224–226.

(c) The Court expresses no view on the merits of Bond's challenge to the statute's validity. P. 226.

581 F. 3d 128, reversed and remanded.

KENNEDY, J., delivered the opinion for a unanimous Court. GINSBURG, J., filed a concurring opinion, in which BREYER, J., joined, *post*, p. 226.

Paul D. Clement argued the cause for petitioner. With him on the briefs were *Ashley C. Parrish*, *Candice Chiu*, *Robert E. Goldman*, and *Eric E. Reed*.

Deputy Solicitor General Dreeben argued the cause for the United States in support of petitioner. On the brief were *Acting Solicitor General Katyal*, *Assistant Attorneys General Kris and Breuer*, *Acting Deputy Solicitor General McLeese*, *Nicole A. Saharsky*, *John F. De Pue*, and *Kirby A. Heller*.

Stephen R. McAllister, by invitation of the Court, 562 U. S. 1038, argued the cause and filed a brief as *amicus curiae* in support of the judgment below.*

*Briefs of *amici curiae* urging reversal were filed for the State of Alabama et al. by *David B. Rivkin, Jr.*, and *Lee A. Casey*; for the Center for Constitutional Jurisprudence et al. by *John C. Eastman*, *Anthony T. Caso*, *David L. Llewellyn, Jr.*, *Edwin Meese III*, and *Ilya Shapiro*; for the Eagle Forum Education & Legal Defense Fund by *Andrew L. Schlafly*; and for the Gun Owners Foundation et al. by *William J. Olson*, *Herbert W. Titus*, and *John S. Miles*.